

UNITED STATES DISTRICT COURT
MIDDLE DISTRICT OF LOUISIANA

LOVE’S TRAVEL STOPS &
COUNTRY STORES, INC.,
AND LOVE’S OF LOUISIANA, LLC

Plaintiffs

VERSUS

LOVEPREET SINGH, JFS EXPRESS,
INC., A&J FREIGHT SERVICES, INC.,
DAIMLER TRUCKS NORTH
AMERICA LLC AND UTILITY
TRAILER MANUFACTURING CO.

Defendants

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CIVIL ACTION NO. : 3:18-CV-00842

JUDGE: BRIAN A. JACKSON

MAGISTRATE JUDGE: ERIN
WILDER-DOOMES

FIRST AMENDED COMPLAINT

Plaintiffs, LOVE’S TRAVEL STOPS & COUNTRY STORES, INC., a foreign corporation authorized to do and doing business in the State of Louisiana and LOVE’S OF LOUISIANA, LLC, a Louisiana limited liability company, amend their original Petition for Damages filed in the 18th Judicial District Court for the Parish of West Baton Rouge, as follows:

1.

Made defendants herein are:

- (a) LOVEPREET SINGH, a major domiciliary of the State of California who may be served via the Louisiana Long Arm Statute;
- (b) JFS EXPRESS, INC., a foreign corporation who may be served via the Louisiana Long Arm Statute;
- (c) A&J FREIGHT SERVICES, INC., a foreign corporation who may be served via the Louisiana Long Arm Statute;

- (d) DAIMLER TRUCKS NORTH AMERICA, LLC, a foreign limited liability company authorized to do and doing business in Louisiana who may be served through its agent for service;
- (e) UTILITY TRAILER MANUFACTURING COMPANY, a foreign corporation authorized to do and doing business in Louisiana who may be served through its agent for service.
- (f) A-ONE COMMERCIAL INSURANCE, is a foreign insurance corporation incorporated in Tennessee with its principle place of business in Tennessee, and authorized to do and doing business in Louisiana, who may be served through its agent for service of process, Louisiana Secretary of State.

2.

Defendants are solidarily liable unto plaintiffs for such damages as are reasonable in the premises together with legal interest thereon from date of judicial demand until paid and for all costs of these proceedings.

3.

At all times pertinent herein, LOVE'S OF LOUISIANA, LLC owned and operated a fuel station and store located at 751 Lobdell Highway, Port Allen, West Baton Rouge Parish, Louisiana and LOVE'S TRAVEL STOPS & COUNTRY STORES, INC. is the parent corporation of LOVE'S OF LOUISIANA, LLC.

4.

LOVE'S OF LOUISIANA, LLC and LOVE'S TRAVEL STOPS & COUNTRY STORES, INC. (referred to hereinafter collectively as 'LOVE'S') sustained certain losses as a result of the actions of defendants and incurred losses and expenses in the amount of \$186,849.19 due to damages to its facility in Port Allen caused by defendants.

5.

On August 1, 2017, LOVEPREET SINGH was driving a truck and trailer owned and operated by JFS EXPRESS, INC. and/or A&J FREIGHT SERVICES, INC.; at all times pertinent herein the truck and trailer were in the custody and control of JFS EXPRESS, INC. and/or A&J FREIGHT SERVICES, INC.

5b.

At the time of the fire described herein the defendant A-ONE COMMERCIAL INSURANCE had issued and there was in effect, a policy of liability insurance issued to A & J FREIGHT SERVICES, INC.; consequently said insurer is legally liable for the payment of all damages, both special and general as set forth in the Petition as amended and plaintiffs have a direct cause of action against said insurer.

6.

The above referenced truck and trailer was driven by LOVEPREET SINGH to the LOVE'S facility in Port Allen, Louisiana and parked next to certain diesel fuel pumps at that facility.

7.

The truck and/or trailer driven by SINGH was on fire as he parked it next to the diesel fuel pumps or caught fire while parked and became engulfed in flames, resulting in extensive damage to the LOVE'S facility.

8.

The damages to this facility consisted of certain property damage due to the fire, related loss of fuel and clean up expenses incurred by LOVE'S.

9.

LOVEPREET SINGH was at all times in the course and scope of his employment with JFS EXPRESS, INC. and/or A&J FREIGHT SERVICES, INC. and these parties are liable in solido for the negligence of LOVEPREET SINGH.

10.

The fire was a result of the negligence of LOVEPREET SINGH, JFS EXPRESS, INC. and A&J FREIGHT SERVICES, INC. in the following non-exclusive particulars:

As to SINGH:

- a. Failure to properly inspect his truck, trailer and equipment;
- b. Failure to properly monitor his truck, trailer and equipment;
- c. Failure to properly maintain his truck, trailer and equipment;
- d. Using his truck, trailer and equipment in an unsafe manner;
- e. Failing to see what he should have seen;
- f. Failing to be aware of the condition of his truck, trailer and equipment;
- g. Failing to take steps to avoid the risk of fire;
- h. Operating his truck and trailer in such a manner as to put property of others at risk;
- i. Other acts of negligence or fault which may be shown in this matter.

As to JFS EXPRESS, INC.:

- a. Failure to properly maintain the truck, trailer and equipment;
- b. Failure to properly service the truck, trailer and equipment;
- c. Failure to properly inspect the truck, trailer and equipment before allowing same to be driven;
- d. Failure to properly supervise its drivers;
- e. Failure to properly train its drivers;
- f. Failure to observe the dangerous or potentially dangerous condition of the truck, trailer and equipment;
- g. Other acts of negligence or fault which may be shown in this matter.

As to A&J FREIGHT SERVICES, INC. and A-ONE COMMERCIAL INSURANCE:

- a. Failure to properly maintain the truck, trailer and equipment;
- b. Failure to properly service the truck, trailer and equipment;
- c. Failure to properly inspect the truck, trailer and equipment before allowing same to be driven;

- d. Failure to properly supervise its drivers;
- e. Failure to properly train its drivers;
- f. Failure to observe the dangerous or potentially dangerous condition of the truck, trailer and equipment;
- g. Other acts of negligence or fault which may be shown in this matter.

11.

In the alternative, the fire and resulting damages was caused by a defect or malfunction of the truck and/or trailer.

12.

The truck was a 2015 Freightliner Cascadia manufactured by DAIMLER TRUCKS NORTH AMERICA, LLC.

13.

The trailer was a 2012 Utility reefer trailer bearing license plate number 6147LB manufactured by UTILITY TRAILER MANUFACTURING COMPANY.

14.

The malfunction of the Freightliner truck was due to a defect in the manufacture or design of the truck, inadequate warning as to the characteristics and operation of the truck and/or breach of warranty.

15.

The malfunction of the Utility reefer trailer was due to a defect in the manufacture or design of the trailer, including the manufacture or design of its refrigeration unit, inadequate warning as to the characteristics and operation of the reefer trailer and/or breach of warranty.

16.

A fire such as that which caused the damages complained of herein does not occur absent the negligence of one or more of the parties having care custody and control of the truck and trailer,

or the malfunction of the product placed into commerce by the manufacturers of the truck and/or trailer and plaintiffs plead as applicable herein the doctrine of *res ipsa loquitur*.

WHEREFORE, plaintiffs, LOVE'S OF LOUISIANA, LLC and LOVE'S TRAVEL STOPS & COUNTRY STORES, INC. pray that their Petition for Damages as amended by this First Amended Complaint be deemed good and sufficient and that a summons and citation be issued to defendants ordering the defendants to appear and answer herein, and that after due proceedings, there be judgment herein in favor of LOVE'S OF LOUISIANA, LLC and LOVE'S TRAVEL STOPS & COUNTRY STORES, INC. and against the defendants for the amount of damages prayed for herein, including special damages, property losses, expenses and all other damages together with legal interest thereon from date of judicial demand until paid and for all costs of these proceedings.

Respectfully submitted,

THE THIBODEAUX LAW FIRM, L.L.C.

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